SSLC Board of Directors Meeting — October 13, 2026 (Exos record)

Exos's record from the meeting transcript (data-room/SSLC/meetings/SSLC_Board_Meeting_2026-10-13_transcript.txt). Not SSLC's official minutes. Confidential.

Present: Jim Wertz (chair), Alice Wertz, Bob Conger, Markus Rufer, John Quinn (from Japan). Advisor: Danny Piper (advisor to SSLC and Microcosm on the acquisition; not a director). Board meeting closed 12:27; discussion continued afterward.

Board actions

- Motion 1 (approve offer + §3 exclusivity): DEFERRED to the next meeting. Jim: his vote on the overall agreement is currently no; SSLC will send a counteroffer.
- Motion 2 (full read-only QuickBooks, or equivalent, access for all directors): APPROVED. Exos to make a Mission Control query agent available to directors within a few days.
- Motion 3 (correct AR Unbilled / customer-deposit accounting): APPROVED, 5 business days, within the current framework. An existing industry method (Exos/BBSNV deposit-to-delivery bookings) is the template for A La Carte; Markus supplies shop-floor completion data (1–2 days).
- Motion 4 (ERP/MRP/inventory evaluation using SSLC QuickBooks data): APPROVED, at no cost to SSLC.
- Motion 5 (related-party balances): DEFERRED; SSLC to review the transactions and respond in the next couple of days.

Danny Piper's recommendations (basis for Heads of Terms r2)

- Exchange a Word heads-of-terms with the headline economics; lock material terms once signed, because the financing/SEC filings cannot keep changing. Details go in the definitive agreements.
- Asset sale (not stock): needs board approval plus a majority of shareholders, not every holder; SSLC remains responsible to its own cap table.
- Non-competes only from directors and Markus (parties receiving value), about 5 years; carve-outs for the Microcosm and LOXair licenses (LOXair to be re-papered with Exos). Handle side agreements carefully, with counsel, so shareholders see them.
- Post-closing tax: if Exos steps up asset basis and it creates SSLC tax, Exos covers it (true-up). Add purchase-price-adjustment language (about two sentences each).
- $60K transaction costs are part of the purchase price; each side pays its own lawyers (Exos cannot pay SSLC's counsel). Consider paying it at term-sheet signing to fund retainers. Ed Powell (prior SSLC counsel) as a cost-effective option.
- Employees: no 4–6 year contracts; an assurance of continued employment offers is enough. At-will with for-cause terms in the definitive agreement. Markus treated separately.
- Two divisions (California center of excellence led by Markus; Texas production/automation) under one entity, not separate legal entities, which keeps earn-out measurement simple. Facility decisions post-closing; the buyer makes final calls with Markus's input.
- Prioritize agreeing the term sheet over the accounting cleanup. Compare SSLC's counteroffer (payments tied to Exos funding events, no performance requirements) against Exos's (cash + earn-outs + stock).

Other points

- Jim's counteroffer: larger payments, timed after Exos's financing events (he cited May and August); to be written up and sent with comments from Danny, Bob and Markus.
- Jim requested a black-on-white print copy; sent during the meeting.
- John: the 'invested 25+ years ago' note on the payout slide is unverified and should come out.
- John on urgency: the fairness opinion and the RTO process cannot proceed without a signed agreement; the financing team costs about $15K/week.

Action items

- John/Exos: send the Word term sheet with current numbers (Heads of Terms r2) to Danny for redline.
- Exos: stand up director query access to SSLC QuickBooks data (Motion 2).
- Exos/BBSNV: share the deposit-to-delivery booking example for A La Carte (Motion 3).
- SSLC (Jim): counteroffer, with Danny's comments; Danny to resend his memo to Markus.
- SSLC: respond on the related-party transactions (Motion 5) within a few days.
- Next meeting: end of this week or early next week.